



The [Applicant's Guide](#) includes step by step instructions to complete this form. You are encouraged to use the Applicant's Guide when you complete this form.

Language Preference

The HRTTO offers services in both French and English. See HRTTO policy on [French Language Services](#).

Check off the box below if you wish to receive French Language services such as having communication and documents sent in French and your events held in French with a bilingual (French and English) Adjudicator.

What is your preferred language? ☐ French ☐ English

Section 1: Applicant Information (See [Applicant's Guide](#) for more information.)

The HRTTO will send materials to you **by email** unless you don't have an email address. A document sent to the email address you provide to us will be considered by the HRTTO to have been received by you unless it is returned as undeliverable.

The HRTTO may contact you for more information. If the HRTTO requires you to respond to a communication and if you do not respond within the time specified, the HRTTO may consider that you have abandoned your Application and **it may be dismissed**.

Are you completing this Application for yourself or on behalf of someone else? *

- ☒ I am completing this Application by myself and I am representing myself.
- ☐ I am completing this Application for myself and I am also authorizing someone to represent me. I understand that if I choose this option, the HRTTO and the other parties will send all communication and documents to my representative **only** and not to me. I understand that it is my responsibility to reach out to my representative to get information about my file.
- ☐ I am completing this Application as the representative (licensed or unlicensed) for another person, and I am not their Litigation Guardian.
- ☐ I am completing this Application as the Litigation Guardian on behalf of a minor. **(Form 4A must also be completed at the bottom of this form or filed separately with the HRTTO.)**
- ☐ I am completing this Application as the Litigation Guardian for a person without the mental capacity. **(Form 4B must also be completed at the bottom of this form or filed separately with the HRTTO.)**

Applicant Information

Name - Last name *	Name - First name *	Name - Middle name
Tan	Chong	

Pronouns

☒ She ☐ He ☐ They ☐ Other:

Email address *

pessage2020@gmail.com

☐ Check this box if you do not have an email address where you can be reached.

Mailing Address *

☐ Check this box if you do not have a fixed address.

Unit number	Street number *	Street name *
308	12	Passy Crescent

City *	Province *	Postal code *
North York	ON - Ontario	M3J 3L2

Phone Numbers *

☐ Check this box if you do not have a phone number where you can be reached.

Phone number	TTY	Other
437 545-3920		

Representative Information

Type of representative: *

☐ Lawyer

☐ Paralegal

☐ Human Rights Legal Support Centre

Law Society of Ontario number

☐ Other (See [Applicant's Guide](#) for permitted representatives and exemptions.)

Please choose the type of representative: * ☐ Organizational Representative ☐ Individual Representative

Organizational Representative:

Firm name *

Representative's Name - Last name	Representative's Name - First name
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Pronouns

☐ She

☐ He

☐ They

☐ Other:

Email address *

☐ Check this box if you do not have an email address for the representative.

Mailing Address *

Unit number	Street number *	Street name *
City *	Province *	Postal code *

Phone Numbers *

Phone number	TTY	Other
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Individual Representative:

Representative's Name - Last name *	Representative's Name - First name *
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Pronouns

☐ She

☐ He

☐ They

☐ Other:

Email address *

☐ Check this box if you do not have an email address for the representative.

Mailing Address *

Unit number	Street number *	Street name *
City *	Province *	Postal code *

Phone Numbers *

Phone number	TTY	Other
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Section 2: Respondent Information (See [Applicant's Guide](#) for more information.)

The respondent is the organization or a person you believe discriminated against you. **Naming unnecessary respondents can complicate and delay your Application.** See the HRTO [Practice Direction on Naming Respondents](#) for more information.

Once the HRTO has determined, on a preliminary basis, that the events described in this Application fall under the jurisdiction of the HRTO, the HRTO will send a copy to the respondent(s) using the contact information you provide below. If possible, please provide an email for the respondent as this is the fastest and preferred method of delivery for the HRTO. **You must provide correct contact information for the respondent(s) or your Application will be deemed incomplete.**

Type of Respondent *

☒ **Organization Respondent** ☐ **Individual Respondent**

Organizational respondents are usually entities such as an employer, landlord, government body, service provider, business, or union. Organizations may be responsible for their employees' actions. For the organization's contact, choose someone that you think has authority to respond to your Application. **Note that that contact person you list in this section will not be considered a respondent unless you also include them under the "Individual Respondent" section.**

Organization respondent

Name of organizational respondent *

[Triton Canada Inc](#)

Contact last name Dolan	Contact first name Dean	Contact title VP Compliance & General Counsel
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Relationship to you (example: your employer, landlord, government body)

Email address *

privacy.officer@tritonverify.com

☐ Check this box if you do not have an email address for the organizational respondent.

Mailing Address *

Unit number 1503	Street number * 2235	Street name * Sheppard Ave East	City * Toronto	Province * ON - Ontario	Postal code * M2J 5B5
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Phone Numbers *

☐ Check this box if you do not have a phone number for the organizational respondent.

Phone number 416 494-4444	TTY	Other
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Individual respondent

Name - Last name *	Name - First name *	Name - Middle name
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Relationship to you (example: your employer, landlord, government body)

Email address *

☐ Check this box if you do not have an email address for the individual respondent.

Mailing Address *

Unit number	Street number * 2235	Street name * Sheppard Ave East	City * Toronto	Province * ON - Ontario	Postal code * M2J 5B5
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Phone Numbers *

☐ Check this box if you do not have a phone number for the individual respondent.

Phone number	TTY	Other
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Are there any additional respondents? ☐ Yes ☐ No

Additional Respondent Contact Information

Additional respondent 1 (Organization)

Name of organizational respondent

Contact last name	Contact first name	Contact title
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Relationship to you (example: your employer, landlord, government body)

Email address

☐ Check this box if you do not have an email address for the organizational respondent.

Mailing Address			
Unit number	Street number	Street name	
City		Province	Postal code

Phone Numbers

☐ Check this box if you do not have a phone number for the organizational respondent.

Phone number	TTY	Other
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Additional respondent 2 (Individual)

Name - Last name	Name - First name	Name - Middle name
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Relationship to you (example: your employer, landlord, government body)

Email address

☐ Check this box if you do not have an email address for the individual respondent.

Mailing Address			
Unit number	Street number	Street name	
City		Province	Postal code

Phone Numbers

☐ Check this box if you do not have a phone number for the individual respondent.

Phone number	TTY	Other
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Section 3: Location and Date (See [Applicant's Guide](#) for more information.)

Did these events happen in Ontario? *

☒ Yes ☐ No

In what city/town? *

Toronto

What was the date of last event? * (dd/mm/yyyy)

24/03/2025

Your Application must be made within one year of the last incident (event) of discrimination you experienced. If you are filing this form **more than one year** after the last incident of discrimination, you must explain why you were unable to file it within one year in the section below. (Select the box below to add paragraphs.)

1.

2.

Section 4: Areas of Alleged Discrimination under the Code (See [Applicant's Guide](#) for more information.)

The *Code* prohibits discrimination in five areas. Select the area(s) where you believe you have experienced discrimination. See the [Applicant's Guide](#) for more information on each area. *

- ☐ Employment
- ☐ Housing/Accommodation
- ☒ Goods, services and facilities
- ☐ Contracts
- ☐ Membership in a trade union, trade or occupational association or self-governing profession

Does your Application involve discrimination in any other areas?

☐ Yes ☒ No If yes, specify details below ▼

Other areas where you believe you experienced discrimination:

- ☐ Employment ☐ Housing/Accommodation ☐ Goods, services and facilities ☐ Contracts
- ☐ Membership in a trade union, trade or occupational association or self-governing profession

- ☐ I was a member of a union or other occupational/professional association while I experienced the events related to this Application (the HRTO will forward a copy of this Application to the Union/Association).

Name of Union/Association *

Contact last name

Contact first name

Contact title

Email address *

☐ Check this box if you do not have an email address for the Union/Association.

Mailing Address *

Unit number

Street number *

Street name *

City *

Province *

Postal code *

Phone number *

TTY

Other

Section 5: Grounds of Discrimination under the Code (See [Applicant's Guide](#) for more information.)

The *Code* includes a list of specific grounds of discrimination. Select the ground(s) that apply to the discrimination you are claiming in this Application. See the [Applicant's Guide](#) for more information on each *Code* ground. *

- ☐ Race
- ☐ Ancestry
- ☒ Place of origin
- ☐ Colour
- ☐ Ethnic origin
- ☒ Citizenship
- ☐ Creed
- ☐ Disability
- ☐ Sex, including pregnancy
- ☐ Sexual harassment, solicitation or advances
- ☐ Sexual orientation
- ☐ Gender identity and/or gender expression
- ☐ Family status (note: family status refers to the status of being in a parent and child relationship)
- ☐ Marital status
- ☐ Age
- ☐ Receipt of public assistance (note: you may only select this if you selected "Housing/Accommodation" in Section 4)
- ☐ Record of offences (note: a record of offences is defined under the *Code* to mean a conviction for a criminal offence for which a pardon has been granted or a provincial offence; you may only select this if you selected "Employment" in Section 4)
- ☐ Association with a person identified by a ground listed above
- ☐ Reprisal or threat of reprisal

Section 6: Facts that Support Your Application (See [Applicant's Guide](#) for more information.)

6.1 What Happened

Describe each event where you allegedly experienced discrimination under the *Code*.

1. * I am a J.D. candidate at Osgoode Hall Law School. I was scheduled to begin employment at the Ministry of Attorney General since May 2025. In March 2025, as part of my pre-employment requirements, I was directed to obtain a "Criminal Record Check" as stated in my conditional offer of
2. * When I contacted Triton Canada Inc. to inquire about this issue and express my privacy concerns, I received a dismissive response: "Please sign and date the form. You can fill out whatever information you think is the appropriate one. Unfortunately, I can not read in mandarin to know what

6.2 Connection to Grounds and Discrimination Claimed

The following section asks you to answer how you believe you were discriminated against because of the grounds you identified. Complete all the sections that apply.

Discrimination or Harassment on the Grounds of Race, Ancestry, Place of Origin, Colour, Ethnic Origin or Citizenship

Describe how you identify yourself in terms of your race, ancestry, place of origin, colour, ethnic origin or citizenship. *

I am a citizen of the People's Republic of China. I identify as Chinese in terms of my ethnicity, ancestry, and place of origin. I was born and raised in China before coming to Canada for employment opportunities. I maintain my Chinese citizenship while working in Canada.

Explain why you believe you were discriminated against because of your race, colour, ancestry, place of origin, citizenship or ethnic origin. *

I believe I was discriminated against based on my Chinese citizenship and place of origin through the imposition of invasive and excessive background check requirements that appear to apply specifically to Chinese applicants.

Discrimination or Harassment on the Ground of Creed (e.g. religion)

Describe your creed. *

Explain why you believe you were discriminated against because of your creed. *

Discrimination or Harassment on the Ground of Disability or Perceived Disability

Describe your disability or perceived disability. *

Explain why you believe you were discriminated against because of your disability or perceived disability. *

Do you have particular needs related to your disability? *

☐ Yes ☐ No If yes, specify details below. ▼

Describe your particular needs. *

Did you ask the respondent(s) to meet your needs? *

☐ Yes ☐ No If yes, specify details below. ▼

Describe what you asked the respondent(s) to do. If you name more than one respondent, specify who you spoke to. *

Did the respondent(s) try to meet your need? *

☐ Yes ☐ No ☐ Don't know If yes, specify details below. ▼

Describe what the respondent(s) did to meet your needs. If you name more than one respondent, please tell us what each did. *

Why do you believe the respondent(s)' efforts to meet your needs were not enough? *

Could you have performed the essential duties of the job if the respondent(s) had taken steps to meet your needs? *

☐ Yes ☐ No

Please provide the time periods you have been impacted as a result of your alleged discrimination.

From (dd/mm/yyyy)

To (dd/mm/yyyy)

Discrimination or Harassment on the Ground of Sex, including Pregnancy

Identify your sex. *

Is your Application about discrimination on the ground of pregnancy? *

☐ Yes ☐ No

Explain why you believe you were discriminated against because of your sex or a pregnancy. *

Discrimination or Harassment on the Grounds of Sexual Harassment, Solicitation or Advances

Explain why you believe you experienced sexual harassment, solicitations or advances. *

If you are alleging you experienced sexual solicitation or advances, was the person(s) responsible in a position to grant or deny you a benefit? * If so, explain how.

Discrimination or Harassment on the Ground of Sexual Orientation

Explain how you identify yourself in terms of your sexual orientation. *

Explain why you believe you were discriminated against because of your sexual orientation. *

Discrimination or Harassment on the Grounds of Gender Identity and/or Gender Expression

Explain how you identify yourself in terms of your gender identity or gender expression. *

Explain why you believe you were discriminated against because of your gender identity or gender expression. *

Discrimination or Harassment on the Grounds of Family or Marital Status

Describe your family or marital status. *

Explain why you believe you were discriminated against because of your family or marital status. *

Discrimination or Harassment on the Ground of Age

Date of birth * (dd/mm/yyyy) _____

Explain why you believe you were discriminated against because of your age. *

Discrimination or Harassment on the Ground of Receipt of Public Assistance

What form of public assistance do you receive? *

- ☐ Ontario Works
- ☐ Ontario Disability Support
- ☐ Canada Pension Plan
- ☐ Subsidized Housing
- ☐ Other (specify) ► _____

Explain why you believe you were discriminated against because of receiving public assistance. *

Discrimination or Harassment on the Ground of Record of Offences

Note: Filing under record of offences means that you are alleging that you have been discriminated against on the basis of a conviction for a criminal offence for which a pardon has been granted or for a provincial offence.

Do you believe you were discriminated against because of a conviction under a federal law (such as a *Criminal Code* offence)? *

☐ Yes ☐ No If yes, specify details below. ▼

What was the federal offence? *

Have you received a pardon for the conviction? *

☐ Yes ☐ No If yes, specify details below. ▼

Why do you believe you were discriminated against because of your record of a federal offences? *

Do you believe you were discriminated against because of a conviction under a provincial law (such as the *Highway Traffic Act*)? *

☐ Yes ☐ No If yes, specify details below. ▼

What was the provincial offence? *

Why do you believe you were discriminated against because of your record of a provincial offence? *

Discrimination on the Ground of Association

Complete this section if you believe that you were discriminated against because the respondent(s) associated you with a person or persons identified by a prohibited ground of discrimination in the *Code*.

Explain why you believe you were discriminated against because of an association, relationship, or dealings with a person or persons identified by a prohibited ground of discrimination. *

Reprisal

Why do you believe that the respondent(s) did something to punish you for exercising your rights under the *Code*? Check all that apply. *

☐ I claimed or enforced my rights under the *Code*. (Specify details below.) ▼

Provide details on how you were reprisal against. *

☐ I refused to infringe on another person's rights under the *Code*. (Specify details below.) ▼

Provide details on how you were reprisal against. *

☐ I started or took part in a human rights proceeding. (Specify details below.) ▼

What was the nature of the human rights proceeding and what was your role in it? *

Provide the name and/or file number for that proceeding, if available.

Provide details on how you were reprisal against. *

Section 7: Other Legal Proceedings (See [Applicant's Guide](#) for more information.)

Is there or has there been another proceeding based on the same events/facts as this Application? *

- ☐ No
- ☒ Yes – provide the HRTO with a copy of the statement of claim or other document that started the proceeding, and a copy of any decision if it has been completed.

Describe the other proceeding in a few words: *

I filed a complaint with the Office of the Privacy Commissioner of Canada (OPC) regarding the privacy aspects of this background check.

What stage is the other proceeding at? Has there been a hearing? When is a decision expected? *

On October 31, 2025, the OPC advised that they do not have the statutory power to mandate the remedies I seek. I chose to withdraw the file at the OPC's suggestion to pursue other avenues for these remedies. The OPC did not make a final determination on the merits of the discrimination claim.

Section 8: Remedy (See [Applicant's Guide](#) for more information.)

If the HRTO concludes that the *Code* was breached, it may award you a remedy.

What remedies are you asking for? *

- ☒ Monetary compensation

Enter the amount requested: * \$ 5,000.00

Explain how you calculated this amount. *

I am seeking \$5,000 in compensation for the injury to my dignity, feelings, and self-respect. This experience has significantly undermined my confidence in the fairness of the Canadian professional landscape and caused me to feel marginalized at the very start of my legal career in this country.

- ☒ Non-monetary remedy

Provide details. *

An order requiring Triton Canada Inc. to cease the use of the "PRC Personal Details Sheet" and implement alternative, non-discriminatory verification procedures for Chinese applicants that respect privacy and human rights.

- ☒ Remedy for future compliance (public interest remedy):

Provide details. *

An order requiring Triton Canada Inc. to provide mandatory human rights and cultural sensitivity training to all staff involved in international background screenings, focusing on the prevention of discrimination based on place of origin and citizenship.

Section 9: Declaration and Signature (See [Applicant's Guide](#) for more information.)

Important: Make sure you understand what you are declaring before signing the Application.

To the best of my knowledge, the information in this Application is complete and accurate.

Authorized signature (If filing electronically, type your last name, first name.) *

Chong Tan

Date (dd/mm/yyyy) *

12/03/2026

You can sign and date your own application, OR it can be signed on your behalf by the authorized, licensed lawyer or paralegal whose contact information is provided in Section 1. See the HRTO's [Practice Direction on Electronic Filing by Licensed Representatives](#) for more information.

- ☒ When you file electronically, typing your name and dating your Application represents your signature. Check the box to confirm you understand and agree to this.

Collection of Information:

The Human Rights Tribunal of Ontario (HRTO) has the right under the *Human Rights Code* and the *Statutory Powers Procedure Act* to collect the information requested on this form to fulfill its legislative mandate. After you file the form, all information related to the proceeding may become publicly available in a tribunal decision, order, or other document, in accordance with Tribunals Ontario's Access to Records Policy and the *Tribunal Adjudicative Records Act, 2019*. Parties wanting records or information to remain confidential must seek a confidentiality order from an adjudicator. If you have questions about confidentiality orders or access to records, please contact us by email at HRTO.registrar@ontario.ca or at 416-326-1312 or 1-866-598-0322 (toll-free).



A litigation guardian is a person who conducts an application on behalf of a person who does not have legal capacity to do so. Rule A10 of the Social Justice Tribunals Ontario Common Rules sets out the process for appointment of and responsibilities of litigation guardians. For more information about litigation guardians and the completion of this form, see the SJTO practice direction on Litigation Guardians.

Complete this form when you seek to be litigation guardian for a person under the age of 18. **YOU MUST ALSO COMPLETE AND FILE AN APPLICATION (FORM 1) OR RESPONSE (FORM 2) WITH THE TRIBUNAL.** The Form 1 or 2 may be filed electronically or by mail, email or fax. This Form 4A may be filed by mail, email or fax at the same time as you file the Form 1 or 2 or immediately afterwards.

An Application or Response where a minor is represented by a litigation guardian will not be accepted until the Form 4A is filed with the Tribunal.

Download forms from the Tribunal's web site tribunalsontario.ca/hrto. If you need a paper copy or accessible format, contact us:

Human Rights Tribunal of Ontario
15 Grosvenor Street, Ground Floor
Toronto, ON M7A 2G6

Phone: 416-326-1312 Toll-free: 1-866-598-0322
TTY: 416-326-2027 Toll-free: 1-800-855-0511
Email: hrto.registrar@ontario.ca

**Minor's Name and Date of Birth**

First (or given) name

Last (or family) name

What is the minor's date of birth?

(dd/mm/yyyy)

Litigation Guardian's Name and Contact Information

First (or given) name

Last (or family) name

Street number

Street name

Unit number

City

Province

Postal code

Email address

Primary phone number

Secondary phone number

TTY

Litigation Guardian's Declaration**For each declaration below please mark the box confirming the statement.**

- ☐ 1. I declare that I consent to and am prepared to act as litigation guardian for _____ (name), a minor under the age of 18 years, in this Application before the Human Rights Tribunal of Ontario.
- ☐ 2. I declare that I am at least 18 years of age and that I understand the nature of this proceeding.
3. I declare that:
- ☐ I am a parent or legal guardian with lawful custody of the minor and with whom the minor resides.
OR
- ☐ I am another person with lawful custody of the minor.
(You must attach the document that provides you with custody of the minor)
OR
- ☐ My relationship with the minor is as follows: _____
4. I declare that:
- ☐ There are no other persons, including no other parent, with custody or legal guardianship of the minor.
OR
- ☐ _____ (name) has custody or legal guardianship of the minor and I have provided that person or organization with a copy of all the materials related to this Application as well as a copy of the Social Justice Tribunals Ontario practice direction on litigation guardians.
- ☐ 5. I declare that I have no interest that would conflict with the interests of the person represented.



- ☐ 6. I declare that I will diligently attend to the interests of the person represented and shall take all steps necessary for the protection of those interests including:
- a. to the extent possible, informing and consulting with the person represented about the proceedings;
 - b. considering the impact of the proceeding on the person represented;
 - c. deciding whether to retain a representative and providing instructions to the representative; and
 - d. assisting in gathering evidence to support the proceeding and putting forward the best possible case to the tribunal.

Signature of Litigation Guardian

By signing my name, I declare that, to the best of my knowledge, the information that is found in this form is complete and accurate.

Name

Signature

Date (dd/mm/yyyy)

☐ Please check this box if you are filing this form electronically. This represents your signature. You must fill in the date, above.

Collection of Information:

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A litigation guardian is a person who conducts an application on behalf of a person who does not have legal capacity to do so. Rule A10 of the Social Justice Tribunals Ontario Common Rules sets out the process for appointment of and responsibilities of litigation guardians. For more information about litigation guardians and the completion of this form, see the SJTO practice direction on Litigation Guardians.

Complete this form if you seek to be litigation guardian for a person who does not have mental capacity to make decisions in the Application himself or herself. **YOU MUST ALSO COMPLETE AND FILE AN APPLICATION (FORM 1) OR RESPONSE (FORM 2) WITH THE TRIBUNAL.** The Form 1 or 2 may be filed electronically or by mail, email or fax. This Form 4B may be filed by mail, email or fax at the same time as you file the Form 1 or 2 or immediately afterwards.

An Application or Response where a person is represented by a litigation guardian will not be accepted until the Form 4B is filed with the Tribunal.

Download forms from the Tribunal's web site tribunalsontario.ca/hrto. If you need a paper copy or accessible format, contact us:

Human Rights Tribunal of Ontario
15 Grosvenor Street, Ground Floor
Toronto, ON M7A 2G6

Phone: 416-326-1312 Toll-free: 1-866-598-0322
TTY: 416-326-2027 Toll-free: 1-800-855-0511
Email: hrto.registrar@ontario.ca

**Name of Person Represented**

First (or given) name

Last (or family) name

Litigation Guardian's Name and Contact Information

First (or given) name

Last (or family) name

Street number

Street name

Unit number

City

Province

Postal code

Email address

Primary phone number

Secondary phone number

TTY

Litigation Guardian's Declaration**For each declaration below please mark the box confirming the statement.**

- ☐ 1. I request to act as litigation guardian for _____ (name), a person who lacks the mental capacity to participate in this Application before the Human Rights Tribunal of Ontario.
- ☐ 2. I declare that I am at least 18 years of age and that I understand the nature of this proceeding.
- ☐ 3. I declare that my relationship with the person is as follows:

4. I declare that:
- ☐ I do not have any existing substitute decision making authority for the person.
OR
- ☐ I am a court appointed litigation guardian or substitute decision-maker for the person and have the authority to conduct this proceeding. (Please attach a copy of the document(s) authorizing you to act in this capacity i.e. a continuing power of attorney and related document(s), or appointment under the *Substitute Decisions Act, 1992*, or Court order.) **[IF THIS APPLIES, YOU NEED NOT COMPLETE SECTIONS 5-8 OF THIS FORM.]**
OR
- ☐ I am a substitute decision maker for the person with respect to matters other than this Application. Please attach a copy of the document authorizing you to act in this capacity (i.e. a continuing power of attorney, or appointment under the *Substitute Decisions Act, 1992*).
- ☐ 5. I declare that no other person has authority to be the litigation guardian for the person in this tribunal proceeding.
6. I declare that:
- ☐ No other person has guardianship or substitute decision making powers for the person for any matters.
OR
- ☐ _____ (name) holds power of attorney or guardianship for the person for other matters, but this power does not apply to the conduct of this proceeding. I have provided that person or organization with a copy of all the materials related to this Application and a copy of the Social Justice Tribunals Ontario practice direction on litigation guardians.
- ☐ 7. I declare that I believe:
- a. the person for whom I seek to be a litigation guardian does not have the mental capacity to make decisions about this Application on his or her own behalf;
- b. if the person is the applicant, the person does not have the mental capacity to consent to an Application being brought on his or her behalf under section 34(5) of the *Human Rights Code*;
- c. the person cannot understand information relevant to making the decisions to commence an Application (if applicable), delegate the power to pursue or respond to an Application, or withdraw or settle an Application and is not able to appreciate the reasonably foreseeable consequences of making or not making such decisions.



- ☐ 8. I declare that the reasons for my belief that the person is not mentally capable of making decisions about this Application, and the nature and extent of the disability causing the mental incapacity, are as follows (attach additional pages as needed to explain the basis of the person's incapacity and evidence in support):
-
- ☐ 9. I declare that I have no interest that would conflict with the interests of the person I am representing.
- ☐ 10. I declare that I will diligently attend to the interests of the person represented and shall take all steps necessary for the protection of those interests including:
- a. to the extent possible, informing and consulting with the person represented about the proceedings;
 - b. considering the impact of the proceeding on the person represented;
 - c. deciding whether to retain a representative and providing instructions to the representative; and
 - d. assisting in gathering evidence to support the proceeding and putting forward the best possible case to the tribunal.

Signature of Litigation Guardian

By signing my name, I declare that, to the best of my knowledge, the information that is found in this form is complete and accurate.

Name

Signature

Date (dd/mm/yyyy)

☐ Please check this box if you are filing this form electronically. This represents your signature. You must fill in the date, above.

Collection of Information:

The Human Rights Tribunal of Ontario (HRTO) has the right under the *Human Rights Code* and the *Statutory Powers Procedure Act* to collect the information requested on this form to fulfill its legislative mandate. After you file the form, all information related to the proceeding may become publicly available in a tribunal decision, order, or other document, in accordance with Tribunals Ontario's Access to Records Policy and the *Tribunal Adjudicative Records Act, 2019*. Parties wanting records or information to remain confidential must seek a confidentiality order from an adjudicator. If you have questions about confidentiality orders or access to records, please contact us by email at HRTO.registrar@ontario.ca or at 416-326-1312 or 1-866-598-0322 (toll-free).

PIPEDA-049400 - Complaint Submission Confirmation - File Number

From NePasRepondre-DoNotReply@priv.gc.ca <NePasRepondre-DoNotReply@priv.gc.ca>

Date Fri 2025-05-16 21:36

To Chong Tan <chongtan2023@osgoode.yorku.ca>



Complaint Form Submission Confirmation

Please keep this email for future reference

Your complaint to the Office of the Privacy Commissioner of Canada has been successfully submitted. Your reference number is **PIPEDA-049400**.

We are currently reviewing a high volume of submissions and our response time is longer than usual. We understand the importance of your privacy concerns and apologize for this delay. We are currently working to reduce our complaint treatment times.

We will contact you again as soon as possible. In the interim, if you have further information or documents to provide now, or in future, please upload them using our [Document Drop-off](#) or send them by mail to:

- Reference: PIPEDA-049400
- Intake Office
- Office of the Privacy Commissioner of Canada
- 30 Victoria Street
- Gatineau, Québec
- K1A 1H3

For more information on our investigation process, you can consult our publication: [What to expect during a complaint investigation under the Personal Information Protection and Electronic Documents Act](#).

Part A

1. What province or territory did the incident or practice you are concerned about occur in? *

Ontario

2. Is your complaint about the handling of personal information by any of the following: *

No

3. Is your complaint about the handling of personal information by a health practitioner (e.g. a doctor, nurse, pharmacist, chiropractor, psychologist, etc.) or a health clinic or hospital? *

No

4. Is your complaint about the handling of personal information during or in relation to an independent medical exam conducted for an employer or insurance company (for example to determine fitness to work or eligibility for benefits)? *

No

5. Are you submitting the complaint as a customer or as an employee of the organization? *

Customer

6. Is your complaint against any of the following types of organizations? *

No

7. If your complaint is against any of the following types of organizations, please check all that apply.

Part B

8. Have you filed a complaint about your concerns with another body (other than the organization your complaint is against)? *

No

9. If your complaint is against any of the following types of organizations, please check all that apply.

10. Have you raised your concern in writing with the organization's contact for privacy issues (often called the privacy officer)? *

Yes

Part C

11. Is your complaint about being denied access to your personal information? *

No

12. Are you filing this complaint on your own behalf (or for a minor child you are guardian of) or on behalf of someone else? *

Yourself (or minor child for whom you are legal guardian)

Organization

13. Which organization is your complaint against? (maximum 500 characters) *

Name: Triton Canada Inc.

Address: 2235 Sheppard Ave East, Suite 1503, Toronto, Ontario M2J 5B5

Contact Information: Dean Dolan, VP Compliance & General Counsel, (416) 494 4444, privacy.officer@tritonverify.com

Complaint Summary

14. Summarize your complaint (maximum 2,500 characters) *

I was scheduled to begin employment since May 2025. In March 2025, as part of my pre-employment requirements, I was directed to obtain a "Criminal Record Check" as stated in my conditional offer of employment from Triton Canada Inc. Thus, on March 24, 2025, I filed an application in Triton, finished the payment and received an invoice (Confirmation No. G375530, see details in Attachment 1) from them for a Criminal Record Check (CRC) and International Criminal Records verification.

Along with this invoice, I received a form titled "People's Republic of China Personal Details Sheet for Screening Purposes for PRC citizens" (N-VýQll N*N°•De™~hh< •u(Nž€Xu(RM€ gå) (see details in Attachment 2). complete "official personal record file" (N°N<hchH) in China, which contains extensive history, including educational records, employment evaluations, political assessments, and other sensitive personal data. I believe this request violates PIPEDA's principle of limiting collection to what is necessary for the identified purposes (Principle 4.4). My concerns are as follows:

- a) The stated purpose of this check, as indicated on the invoice and as required by my prospective employer, is specifically for criminal record verification, not a comprehensive background investigation.
- b) Access to my complete personal record file in China is excessive and disproportionate to what is required to verify my criminal history.
- c) When I contacted Triton Canada Inc. to inquire about this issue and express my privacy concerns, I received a dismissive response: "Please sign and date the form. You can fill out whatever information you think is the appropriate one. Unfortunately, I can not read in mandarin to know what is the required information from the candidate and what type of search the Chinese Authorities do." (see details in Attachment 3). This response indicates a lack of understanding of the information they are requesting and raises concerns about their data handling practices. I also have tried to resolve this matter with Triton's privacy officer, but to no avail. I would like the OPC to investigate these concerns.

Resolution

15. What would resolve your concerns? (maximum 2,500 characters) *

I am requesting that Triton Canada Inc.:

- a) Provide detailed information about how my personal information is being accessed, processed, stored, and protected, particularly regarding my Chinese personal record file. This should include:
 - Which specific third parties in China will have access to my information
 - What security measures are in place to protect my sensitive personal data
 - How long my personal information will be retained
 - What safeguards exist to prevent unauthorized disclosure
- b) Disclose the full name and position of the employee who sent the dismissive email response shown in Attachment 3, and arrange for this individual to provide a formal apology for their unprofessional handling of my legitimate privacy concerns.
- c) Implement additional training for Triton's staff on privacy legislation, cultural sensitivity, and appropriate handling of customer inquiries regarding personal information protection, particularly when dealing with international documentation.
- d) Review Triton's procedures for requesting personal information from international applicants to ensure compliance with PIPEDA's principles.

16. Summarize your attempts to resolve the privacy matter with the organization. (maximum 2,500 characters) *

- a) I contacted Triton Canada Inc. directly to express my concerns about the excessive information being requested and to inquire whether my existing notarized criminal record check would be sufficient.
- b) I received the dismissive response quoted above, which did not address my privacy concerns or offer any alternative solution.
- c) On April 29, 2025, I sent an email of complaint to the privacy officer of Triton Canada Inc.. They responded to me on May 16, 2025, with no meaningful response (see Attachment 4).

Previous Complaint

17. Have you submitted a complaint in the past with the Office of the Privacy Commissioner (OPC)? *

No

Complainant Information

Ms. Chong Tan

12 Passy Crescent

Toronto Ontario M3J 3L2

Canada

18. E-mail address (yourname@domain.com): chongtan2023@osgoode.yorku.ca

19. Daytime telephone number (123-456-7890): 437-545-3920

20. Extension (digits only):

21. Alternate telephone number (123-456-7890):

22. Extension (digits only):

23. Preferred language: English

24. Preferred way of communication: Any

Accommodation

25. We are committed to ensuring that clients with disabilities have equal access to, and can benefit from, all our public-facing services. Will you need accommodation measures for the complaint investigation process? *

No

26. Do you wish to upload your supporting documents or send them by mail? *

Upload them

Attachments *

Attachment 1_TritonCanadaIncInvoice_G375530.pdf

Attachment 2_CHINESE RELEASE FORM.PDF

Attachment 3_Email Correspondence when the issue happened.pdf

Attachment 4_Email Correspondence with Privacy Officer of Triton.pdf

Confirmation

27. Please certify that the information you have given on this form is, to the best of your knowledge, true, accurate and complete. *

I certify

28. Acknowledgement *

I have read and understood the above statement

PIPEDA-049400 - Chong Tan v. Triton Canada Inc.

From Enquêtes LPRPDE / PIPEDA Investigations <EnquetesLPRPDE-PIPEDAInvestigations@priv.gc.ca>

Date Fri 2025-10-31 10:07

To Chong Tan <chongtan2023@osgoode.yorku.ca>

Hi Chong,

Following our review of your complaint against Triton Canada Inc., please see our analysis and preliminary conclusion below:

For context, your desired resolutions in your complaint form to our office include:

- a. Provide detailed information about how my personal information is being accessed, processed, stored, and protected, particularly regarding my Chinese personal record file.
- b. Disclose the full name and position of the employee who sent the dismissive email response shown in Attachment 3, and arrange for this individual to provide a formal apology for their unprofessional handling of my legitimate privacy concerns
- c. Implement additional training for Triton's staff on privacy legislation, cultural sensitivity, and appropriate handling of customer inquiries regarding personal information protection, particularly when dealing with international documentation.
- d. Review Triton's procedures for requesting personal information from international applicants to ensure compliance with PIPEDA's principles.

Our analysis: We cannot address your non-privacy customer service concerns (b), and we don't have the power to mandate apologies, discipline, or training (c) for individual employees. When we investigate a complaint, we are also not in a position, in response to an individual complaint, to conduct an audit of an organization's broad practices such as procedures for requesting information or safeguards practices (d). Nonetheless, we do retain records of complaints made which can help us identify patterns of concerns with different organizations (e.g. recurring complaints against an organization). For your questions about how your own PI is being collected, disclosed, and retained (a), **we recommend you initiate an access request for your personal information to Triton**. With respect to wanting to know details of safeguards, you may ask Triton directly, but PIPEDA doesn't require organizations to provide details of safeguards to individuals.

In short, an access request should give you the answers to (a). Our office does not have the powers to mandate (b,c,d). As of now, we suggest these next steps for your file:

1. Initiate a personal information access request to Triton directly
2. Speak to Triton directly regarding (b,c,d)
3. If you agree, we will close this file on the basis of withdrawal as you work on your access request to Triton.
4. You may refile at a later date if you believe Triton was unable to satisfy your privacy related concerns.

Please let us know if you have any questions

Best,

La Direction des enquêtes

Commissariat à la protection de la vie privée (CPVP)

EnquetesLPRPDE-PIPEDAInvestigations@priv.gc.ca

Veuillez envoyer toute correspondance à cette adresse en vous assurant d' indiquer le numéro de dossier.

N' hésitez pas à répondre dans la langue officielle de votre choix.

The Investigations Directorate

Office of the Privacy Commissioner of Canada (OPC)

EnquetesLPRPDE-PIPEDAInvestigations@priv.gc.ca

Please send any correspondence to this address and ensure the file number is indicated.

Please respond in the official language of your choice.

Triton Canada Inc
2235 Sheppard Ave East, Suite 1503
Toronto, Ontario
M2J 5B5

Sales Receipt

Date	Confirmation No.
2025-03-24	G375530

Sold To
Chong Tan

Card Holder Name

[illegible]

Credit Card Number: 519123*****6800
Payment Type/Card Type: MASTER_CARD
GST/HST No. 821604451RT0001

People's Republic of China
Personal Details Sheet for Screening Purposes for PRC citizens
中国公民个人资料表格
(适用于聘用前调查)

Please complete all requested details in Chinese.
 请用中文填写以下资料，勿留空项。

Name in Chinese and Former Name (if applicable) (中文姓名及曾用名)	
PRC Identity Number and DOB (中国身份证号码及出生日期)	身份证号码.: 出生日期:
Hukou Address, Name of Police Office and Hukou Type (详细户口所在地址, 管辖派出所及户 口类型)	户口地址: 管辖派出所 : 户口类型: ☐ 集体户口 集体名称: ☐ 个人户口
Entity that holds the official personal record file, Contact information & File No. (人事档案所在单位包括名称、电话, 存档号码及存档类型)	名称: 电话: ☐ 以个人名义存档, 存档号码: ☐ 以雇主名义存档, 雇主名称:
Can a reference be taken now? (目前可否与该单位核实)? If no, when can it be taken? (如否, 何时可与该单位联系)?	☐ Yes (是) ☐ No (否)
For Students and Graduates whose personal record file are kept at the university only (人事档案仍在学校的毕业生及在校学 生请填写此栏)	学校: 系别、专业: 年级、学号: 已获或将获学位:

授 权 书

致有关人士:

本人授权此授权书的持有人对本人在职位申请表及个人履历中所提供的信息在其认为必要时进行核实。于核实有无犯罪记录时, 请有关部门和单位予以配合。

本人授权持有或了解有关情况的人士向此授权书持有人如实披露有关情况。本人免除其因此而可能产生的责任。

姓名 Signed in Chinese	: _____	日期 Date	: _____
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English Translation (for reference only)

Letter of Authorization

To Whom It May Concern:

I hereby provide my authorization to the Bearer of this Letter to verify information provided in my resume and application of employment and to conduct enquiries as may be necessary, at the Bearer's discretion. Should the Bearer make application to the relevant department for a criminal record check, please do not hesitate to help.

I authorize all persons who may have information relevant to this enquiry to disclose it to the Bearer of this letter. I release all persons from liability on account of such disclosure."